

Delaware Drainage Board September 10th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=vXMVyumbH1Y
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Delaware County Drainage Board Meeting Summary

Meeting Date: September 10

Report Prepared By: Expert Civic Analyst

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Drainage Board was called to order on September 10, opening with the Pledge of Allegiance [00:00:02](#).
- **Attendance:**
 - **Present:** Mr. Whitehead, Mr. Hamilton, Mr. [Rick/Rian], Mr. Christie, Mr. Buffalo, Mr. Murphy, and Mr. Borchert (Presiding Officer).
 - **Absent:** None noted.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by the presiding officer [00:00:04](#).
- **Approval of Minutes:**

- **Action & Vote Disposition:** Minutes from the July 9 and August 13 meetings were approved by roll call vote (with Mr. Whitehead abstaining) [00:00:43](#).
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3. Substantive Business & Board Action

[00:00:59](#) Wayne Johns Ditch Obstruction (Tabled Business / Petition Denial)

- **Sponsor / Presenter:** Board Attorney / Tom (Surveyor) / Mr. Borchert.
- **Deliberation Summary:** The board removed the previously tabled issue regarding the Wayne Johns ditch obstruction. The board attorney presented a legal memo stating that drainage boards are strictly confined to powers granted by Indiana Code (IC 36-9-27.4 and IC 36-9-27.2). While the board has authority over regulated drains and limited authority over mutual drains and natural surface waters, it has **no legal authority to determine neighbor disputes regarding diffuse surface water** or rule on the "common enemy doctrine."
- **Item-Specific Public Input:**
 - [00:04:37](#) **Chad Thornberg** (Deputy Trustee for Delaware Township and farmer) stated his opinion that the board and surveyor failed both parties involved, questioned the board's obligation if diffuse surface water and unpermitted levees/ponds fall outside their purview, and noted civil property disputes take years.
 - [00:11:20](#) **Brandy Hoff** (Property Owner, 8209 East County Road 350 North, Albany) stated she acted under the common enemy doctrine after plans to install a drain cooperatively did not move fast enough for the Johns family, noting she followed the law regarding diffuse water.
- **Action & Vote Disposition:** Motion to deny the request/affidavit for removing the obstruction passed by roll call vote [00:04:00](#).

[00:13:31](#) NRCS Headwall Design Review (New Business)

- **Sponsor / Presenter:** Tom (County Surveyor).
- **Deliberation Summary:** The surveyor presented a draft design from the USDA/NRCS for a concrete retaining wall/headwall on a 24-inch tile daylighting into an open ditch just north of M<U+00E8>gallard (west of the bypass). Cost estimates for the spillway ranged from \$19,000 to \$32,000, which exceeds the threshold for standard quotes and raised questions regarding engineering review and cost efficiency.
- **Action & Vote Disposition:** Motion to table the project for further investigation and information gathering passed by roll call vote [00:17:27](#).

[00:17:44](#) Maintenance Claims Approval

- **Sponsor / Presenter:** Board Members / Surveyor.

- **Deliberation Summary:** The board reviewed general maintenance claims totaling \$47,385.33. Discussions ensued regarding specific line items:
 - *Butler Masonry Road Cut (\$10,000):* Clarified that a road cut was necessary due to an old galvanized tile failing and separating at a joint, compounded by hand-digging around unmarked gas and high-pressure sewer lines.
 - *Little Campbell Creek Log Jam:* The surveyor apologized for exceeding the \$10,000 quote limit due to heavy access clearance and log disposal requirements necessary to prevent imminent flooding of homes.
 - *Racer Ditch Claim (\$19,000 by Arnold):* Held back from approval due to unfulfilled contract specifications.
- **Action & Vote Disposition:**
 - General maintenance claims (excluding the Racer Ditch claim) **Approved by Roll Call Vote 00:27:00.**
 - Motion to **table the Racer Ditch claim** to allow legal and the surveyor to determine a fair payout amount based on incomplete work **Approved by Roll Call Vote 00:28:49.**

4. Old Business & Project Updates

- **Cody Light Property (Rector Drain):** Inspected after complaints regarding a 2-inch rain flow. The surveyor explained that the property sits downstream from a 20-acre lake, wetland acreage, and a 15-inch drain, operating as designed 100 years ago. A small joint separation was fixed.
- **Don Chambers Complaint:** Regarding a neighbor running water; determined to be outside board jurisdiction as it is 1,500-2,000 feet from a regulated drain.
- **Commissioner Henry Property:** Tile checked; found completely dry. Two breathers were installed for future televising/jet-rodding.
- **Stockport Road Culvert:** County attorney letter sent; project moving forward. Maps to be updated by Mr. Johnson.
- **Holtzanger Property:** Two sinkholes to be repaired post-harvest; beaver dam already cleared.
- **Racer Ditch De-brushing:** Quotes to finish the job for Mr. Dennis Rogers and Dunkirk to be opened next month.
- **Hickory Lane / Koulies Claim:** Staff coordinating with stormwater, highway, and commissioners to assist residents upstream from the current tile terminus.

5. Open Public Comment / Citizen Forum

Note: Public testimony regarding specific agenda items (Wayne Johns Ditch dispute) was integrated into Section 4 above during the specific hearing item. No separate general open

forum speakers addressed the board outside of the scheduled agenda items.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Board members expressed thanks to the Delaware County Farm Bureau for allowing representatives to attend the state surveyor meeting 00:31:38.
 - **Adjournment:** The meeting was **adjourned by voice vote** 00:32:04.
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